

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 16-022
Amendment to Title 8, Chapter 10
of the Code of the Chickasaw Nation
Campaign Contributions and Expenditures**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, this Chickasaw Tribal Legislature has reviewed Title 8, Chapter 10 of the Code of the Chickasaw Nation, and finds the need for revisions.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends Title 8, Chapter 10 of the Code of the Nation, by adding the following sections:

SECTION 8-1005 CHALLENGES TO CANDIDACY.

A. A candidate may challenge the eligibility of another candidate in writing, specifically naming the candidate and the district and stating the cause of the challenge as based upon a campaign contribution disclosure violation. Such challenges must be filed no later than two (2) working days after the closing of the filing deadline for the disclosure statements for that particular month. A candidate being challenged shall have three (3) working days from the day of receipt of notice of the challenge to file an appeal to the challenge; provided, however, that other time frames for filing of challenges and counter appeals may be stipulated by the Legislature for special elections. Notice of a challenge shall be sent to the challenged candidate by certified mail, return receipt requested or may be delivered in person. If notice of challenge is hand delivered, the person who completes delivery will file a statement which includes the details of delivery, including date, time and location.

B. Any Election Commission member, or Election Secretary/Tribal Registrar, who may possess information about a candidate for office which might disqualify such candidate from running or holding such office shall be authorized to challenge such candidate in the same manner and according to the same form as is required of a candidate's challenge.

SECTION 8-1006 HEARING CHALLENGE, DECISION.

A candidate's campaign contribution disclosure dispute shall be heard by the Election

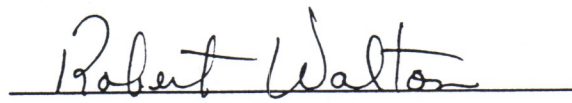
May 21, 1999

Commission no later than seven (7) days after the challenged candidate has been notified of the challenge. The decision of the Election Commission on the eligibility of the candidate shall be final and in writing and shall be made within seven (7) days after the challenged candidate has been notified. The election date shall not be delayed.

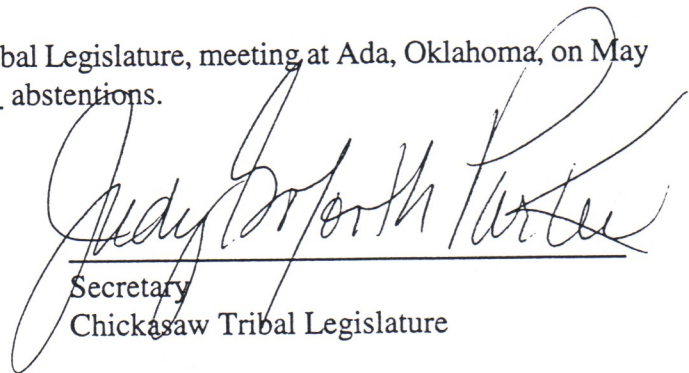
SECTION 8-1007 APPEAL.

If the final decision of the Election Commission on the eligibility of a candidate denies him from running for office, the candidate may appeal the decision to the Tribal Court by filing an appeal in writing within seven (7) days after the Election Commission renders its decision. However, no ruling by the Court shall delay the date of any election and the ruling of the Court shall be final.

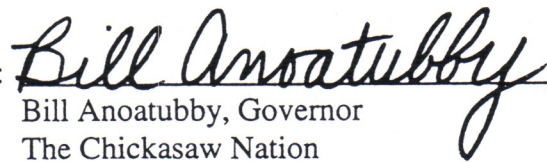
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 21, 1999, by a vote of 13 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 26 1999

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Explanation: This legislation will provide a hearing and appeal procedure by which a candidate may be challenged for violations of campaign contribution reporting requirements.

Requested By: Bill Anoatubby, Governor

Presented By: Lisa Shephard, Chairman
Election Reform Committee